2026 C L C 131

[Balochistan]

Before Muhammad Aamir Nawaz Rana, J

MUHAMMAD SIDDIQUE and others ---Petitioners

Versus

Bibi SHAHZADO and others ---Respondents

Civil Revision No. 501 of 2024, decided on 11th September, 2025.

(a) Specific Relief Act (I of 1877)---

----Ss.42 & 54 --- Balochistan Land Revenue Act (XVII of 1967), S.52---Civil Procedure Code (V of 1908), S.115---Dispute regarding. inheritance and ownership rights among heirs---Daughters entitlement to ancestral property---Recognition and enforcement---Defendants relying on purported family settlement---Presumption of correctness as to entries recorded in record-of-rights---Scope---Respondents Nos. 1 and 2, real sisters and daughters of late S (one of the three sons of WM), filed a suit for declaration, partition, mesne profits, and permanent injunction regarding several ancestral properties left unpartitioned by WM ---They alleged that the petitioners, who were descendants of S s brothers MD and B , continued in possession and collected rent from the inherited properties without recognizing their lawful share under Muhammadan Law, and further attempted to sell portions of the estate---Trial Court decreed the suit in favor of the respondents, which was upheld by the appellate court, leading the petitioners/defendants to file the present civil revision challenging the concurrent findings of both courts below---Held: Admittedly the suit property was recorded in the revenue record in the name of father of respondents Nos.1 and 2, therefore, the petitioners bore a heavy burden to dislodge the inheritance claim of respondents Nos. 1 and 2---Agreement purported to have been entered into between parties was not registered which was a fatal defect---Such agreement was not only vague but also suffered from an inherent defect---Petitioners asserted exclusive purchase of the said property by their late father contrary to the revenue record and stance taken by them in 1971---The presumption of corrections attaching to the jamanbandi remained unrebutted; the admission implicit in the 1971 agreement, read with the doctrine of approbate and reprobate, estopped the party from taking a contrary stance---It was an admitted feature of the case that the suit property was joint property and that the sons of late WM and subsequently their legal heirs were entitled to receive their due shares in accordance with law---The defence plea regarding the family settlement was thoroughly examined by the fora below and in view of the multiple contradictions was rightly discarded---Further, it was an admitted fact that allegedly family settlement of 1971 found no reflection in the revenue record and the petitioners only advanced a patchwork of new, contradictory defences when mutation entries were lawfully effected in favour of the daughters of late S (respondents Nos. 1 and 2)---No party could be allowed to blow hot and cold in the same breath---Alleged family settlement surfaced only after mutation entries were

attested in favour of daughters of respondents Nos. 1 and 2---Such belated and contradictory defenses aimed at depriving female heirs could not be countenanced in law---Women s inheritance rights were held to be indefeasible and could not be defeated by technical pleas of unsubstantiated settlements---No illegality or irregularity was found in the impugned judgments and decrees of courts below---Civil revision was dismissed with cost of Rs.500,000/-.

Mst. Kalsoom Bibi v. Muhammad Amin Agha (Deceased) through L.Rs. 2022 SCMR 929 rel.

(b) Balochistan Land Revenue Act (XVII of 1967)---

----S.52---Entries in record-of-rights or periodical record---Presumption---Scope---Entries made in the record-of-rights or in periodical record are presumed to be correct and accurate---This presumption remains in place unless compelling documentary evidence is presented to challenge it.

(c) Registration Act (XVI of 1908)---

----Ss.17 & 49---Compulsory registration of a document creating or extinguishing rights in immoveable property---Requirement---If a document / agreement purports to create or extinguish rights in immoveable property then same is compulsorily registrable and in absence of registration it cannot affect immoveable property nor create or extinguish ay right in immoveable property.

Behlol Khan Kasi, Abdul Hadi Tareen and Saidal Khan Kakar for Petitioners.

Jameel Ahmed Khan Babai for Respondents Nos. 1 and 2.

Amanullah Tareen for Respondents Nos. 3 to 10.

Allauddin Kakar, Additional Advocate General for Respondents Nos. 11 and 12.

Date of hearing: 27th June, 2025.

JUDGMENT

MUHAMMAD AAMIR NAWAZ RANA, J.---The petitioners/defendants Nos. 1 to 9 (hereinafter, the petitioners) have assailed the concurrent judgments and decrees of the Courts below. The suit instituted by respondents Nos. 1 and 2 /plaintiffs (hereinafter, respondents Nos. 1 and 2) for declaration, possession through partition, mesne profits, and permanent injunction was decreed by the learned Senior Civil Judge, Pishin (hereinafter, the Trial Court), vide impugned judgment and decree dated 26.11.2022. The appeal filed by the petitioners before the learned Additional District Judge, Pishin (hereinafter, the "Appellate Court"), was dismissed vide impugned judgment and decree dated 31.05.2024, thereby affirming the findings of the Trial Court.

2. The essential facts are that respondents Nos.1 and 2 averred in their suit that they are real sisters and daughters of the late Saifuddin, who was one of the three sons of the late Wali Muhammad Karal. The other two sons of the late Wali Muhammad Karal were Muhammad Din and Bahauddin. Muhammad Din passed away in 1966, leaving three sons, i.e., Muhammad Siddique (petitioner No. 1),

Muhammad Sharif (deceased, survived by petitioners Nos. 5 to 9), and Muhammad Karim (died in 2003, survived by petitioners Nos.2 and 3, with petitioner No.4 being his widow). Bahauddin died in 1993, leaving respondents Nos.3 to 9 (defendants Nos. 10 to 16), and respondent No. 10 (defendant No. 17) as his widow. Saifuddin died in 1983, leaving respondents Nos.1 and 2 as his heirs. It was alleged that respondents Nos.1 and 2, the petitioners, and respondents Nos.3 to 10 are all members of the same family and the legal heirs of the late Wali Muhammad Karal.

3. Respondents Nos. 1 and 2 further averred that the late Wali Muhammad Karal left the following properties unpartitioned:

(i) Mahal and Mauza Rod Bazar Kohna, Tappa Saddar Surkhab, Tehsil and District Pishin, bearing Khasra No.231 measuring 42 rod 27 pole.

(ii) Property situated at Zar Kach Behram Khan, mutation Bahawala No. 41/50/50, Khewat Khatooni No.1/1-7, Mahal and Mauza Zar Kach, Tappa Behram Khan year 1987 Pishin.

4. Respondents Nos. 1 and 2 asserted that these properties had remained in the possession of petitioner No.1 and others, who constructed shops thereon and had been receiving rents since 1983, 2000, and January 2014, respectively. They further contended that, despite demands for partition and acknowledgment of their lawful share under Muhammadan Law, the petitioners failed to comply and instead attempted to sell the properties, thereby necessitating the institution of the suit.

5. The reliefs claimed by the respondents Nos.1 and 2 in their plaint included, inter alia, declaration of heirship, recognition of joint ownership, entitlement to mesne profits, partition, permanent injunction, and ancillary reliefs, together with costs.

6. The petitioners contested the suit by filing written statement, denying the entitlement of Respondents Nos. 1 and 2 and raising both legal and factual objections. Respondents Nos. 3 to 6, 9, and 10 filed their written statement and supported the case of Respondents Nos. 1 and 2. Respondents Nos. 7, 8, and 12 failed to appear despite due notice and were, accordingly, proceeded against ex-parte by the Trial Court.

7. From the pleadings, the Trial Court framed the following issues:

"1. Whether the suit of plaintiff is bad for non-joinder of necessary parties?

2. Whether this Court lacks jurisdiction, as matter under section 172 of West Pakistan Land Revenue Act, 1967, as same subject matter is pending adjudication before Full Board of Revenue of Balochistan, between the same parties?

3. Whether the suit is undervalued?

4. Whether according to terms of family settlement shares of legal heirs have already been distributed?

5. Whether the plaintiffs are entitled for the reliefs claimed?

6. Relief?

8. In support of their case, respondent Nos.1 and 2 adduced the evidence of PW-1 to PW-4 and produced relevant documentary material, including mutation entries, reports, and power of attorney. Their attorney also testified on oath.

9. In rebuttal, the petitioners examined as many as 16 witnesses, including petition writers, notaries, patwaris, and representatives of various offices, who produced affidavits, mutation entries, and other documents in support of their stance. Their attorney also appeared and recorded his statement.

10. Respondents Nos. 3 to 6, 9, and 10 produced DW-17 to DW-19 and relied on, inter alia, a Sharai Fatwa and powers of attorneys.

11. Upon appraisal of the evidence adduced by the parties and hearing the learned counsel, as mentioned above, the Trial Court decreed the suit of Respondents Nos. 1 and 2 vide impugned judgment and decree dated 26.11.2022. The Appellate Court, upon reappraisal, concurred with the findings of the Trial Court and dismissed the appeal filed by the petitioners vide impugned judgment and decree dated 31.05.2024.

12. I have heard learned counsel for the parties at considerable length and have perused the record with their valuable assistance.

Determination:

13. Respondent Nos.1 and 2, in their suit, claimed their share as the legal heirs of the late Saifuddin in the suit property. Admittedly, the suit property stands recorded in the revenue record in the name of the father of Respondents Nos. 1 and 2, namely, the late Saifuddin. It is well-settled under Section 52 of the Balochistan Land Revenue Act, 1967 that entries made in the Record-of-Rights or in periodical records are presumed to be correct and accurate. This presumption remains in place unless compelling documentary evidence is presented to challenge it. Since the suit property stood in the name of the late Saifuddin in the revenue record, therefore, the petitioners bore a heavy burden to dislodge the inheritance claim of Respondents Nos. 1 and 2.

14. A perusal of the record reveals that the petitioners' main defense has been that a family settlement between the parties took place in 1971 and that an agreement of family settlement was reduced into writing on 04.08.1971. However, such an agreement, if it purports to create or extinguish rights in immovable property, is compulsorily registrable under Section 17 of the Registration Act, 1908, and in the absence of registration, it cannot affect immovable property nor create or extinguish any right in immovable property in view of Section 49 of the ibid Act. A perusal of the said agreement reflects that it was not registered and that the description of the property which, according to the petitioners, was received by the father of Respondents Nos.1 and 2, the late Saifuddin, in Sri Lanka is not mentioned. The agreement is not only vague but also suffers from an inherent defect. The father of Respondents Nos.1 and 2 had never

been to Sri Lanka; he lived his entire life in Pishin and, after his death, was buried there. In these circumstances, it is implausible why the father of Respondents Nos.1 and 2 would accept, instead of property at Pishin from his late father's legacy, a share in property situated in Sri Lanka, where he had never lived.

15. The second limb of the petitioners defense is that the property bearing Khasra No. 231/72 was, in fact, purchased in 1947 by their predecessor-in-interest, the late Muhammad Din, who allegedly paid consideration of Rs.5,000 to the vendee. This plea is self-contradictory, as it is an admitted fact that the suit property stands recorded in the names of the three sons of the late Wali Muhammad Karal, namely, the late Muhammad Din, the late Bahauddin, and the late Saifuddin (father of Respondents Nos. 1 and 2). If the said property had been exclusively owned by the late Muhammad Din, it remains wholly unexplained why, in 1971, his legal heirs accepted it as joint property. The petitioners asserted exclusive purchase of the said property by their late father i.e. Muhammad Din, contrary to the revenue record and stance taken by them in 1971. The presumption of correctness attaching to the jamabandi remained unrebutted; the admission implicit in the 1971 arrangement, read with the doctrine of approbate and reprobate, estops the party from taking a contrary stand.

16. It further appears that Respondent Nos.1 and 2 approached the revenue authorities for mutation of the suit property in their favour as the legal heirs of the late Saifuddin, whereupon Mutation Entry No.1267 was duly attested in their favour. The petitioners assailed this entry before different forums; however, their review petition was ultimately dismissed with cost of rupees one million by the Full Board of Revenue Balochistan, Quetta, vide order dated 11.12.2023. The relevant excerpt whereof is reproduced below:

"11. For the foregoing reasons, in the light of above referred celebrated judgments of the Hon'ble Apex Court and High Court the petition in hand is dismissed, and since the instant case is also with regard to deprivation of lady legal heirs from their ancestral rights, therefore, a cost of Rupees one million imposed upon the petitioners collectively to be paid to Respondents Nos. 1 and 2 equally within clear fifteen days of passing of this order, falling which proceedings as required under the law shall be initiated against the petitioners. Consequently the order dated 06.07.2011 passed by the learned Member-II Board of Revenue is upheld with the slight addition in the following manner:-

i) Tehsildar Pishin is directed to get a fresh Fatwah in the light of pedigree table in the presence of all concerned as mentioned in the pedigree table. This must be done within one month positively under intimation to Board of Revenue Balochistan, failing which disciplinary action will be initiated against the responsible.

ii) Tehsildar Pishin is further directed to separately effect the mutation of inheritance of the share of Respondents Nos. 1 and 2, demarcate their share in the property in question and also chalk Thatima.

iii) After the above process is done, the Deputy Commissioner is directed to put the Respondents Nos. 1 and 2 in physical possession in their respective share and provide all support and assistance to them through any legal means to secure their right of inheritance in the property in question and to submit report in this regard to Full Board of Revenue Balochistan.

Given under our hand and seal of the Board on this 11th day of December, 2023."

17. The evidence produced by Respondents Nos.1 and 2 has been carefully perused in light of the defense taken by the petitioners, but nothing favourable has emerged for the petitioners. It is an admitted feature of the case that the suit property is joint property, and that the sons of the late Wali Muhammad Karal, and subsequently their legal heirs, are entitled to receive their due shares in accordance with law. The defense plea regarding the alleged family settlement was thoroughly examined by the fora below and, in view of the multiple contradictions, was rightly discarded. Moreover, it is an admitted fact that the alleged family settlement of 1971 finds no reflection in the revenue record, and the petitioners only advanced a patchwork of new, contradictory defences when mutation entries were lawfully effected in favour of the daughters of late Saifuddin (Respondents Nos. 1 and 2). It is a settled rule that no party can be permitted to blow hot and cold in the same breath. Reliance is placed upon the case title as Mst. Kalsoom Bibi v. Muhammad Amin Agha (Deceased) through LRs.[1]

18. It is also significant that the alleged family settlement surfaced only after mutation entries were attested in favour of the daughters of the late Saifuddin, i.e., Respondents Nos.1 and 2. Such belated and contradictory defenses, aimed at depriving female heirs, cannot be countenanced in law. The Hon'ble Supreme Court has repeatedly held that women's inheritance rights are indefeasible and cannot be defeated by technical pleas or unsubstantiated settlements.

For the foregoing reasons, no illegality or irregularity is found in the impugned judgments and decrees of the Courts below so as to warrant interference by this Court in the exercise of its revisional jurisdiction. The petition is, accordingly, dismissed with cost of Rs.500,000/- (Rupees five hundred thousand only), to be paid to Respondents Nos. 1 and 2.

UN/131/Bal Petition dismissed.

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[1] *2022 SCMR 929.*

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